Article 8 Section 5 – Caretaker Relatives

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8.05.01 – Caretaker Relatives

A. General

This section contains information for determining who can be a caretaker relative and how a caretaker relative can be part of a child(ren)'s MFBU.

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B. Caretaker Relative

A caretaker relative is a relative who provides care and supervision to a child when no natural, step, or adoptive parent is in the home with the child. In addition, the caretaker relative must be a relative as defined in MPG Article 1, and reside in the home with the child. A caretaker relative is not a "Responsible Relative." MEM 50085 MEM 50351

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C. MFBU Composition

The table below shows the MFBU Composition for cases with a caretaker relative. MEM 50025

If the caretaker relative ...	Then he/she ...
Has no spouse and/or children of his/her own,	May be in his/her own MFBU or choose to be in the child(ren)'s MFBU.
Has a spouse and/or children of his/her own,	May be linked to related children when: • The caretaker's spouse and own children do not want Medi-Cal; or • The caretaker's spouse and/or own children are eligible and receive Medi-Cal but the caretaker has no linkage in their MFBU.
Is a stepparent because there is no natural or adoptive parent in the home,	Will be considered a caretaker relative unless the stepparent has mutual children with the absent/deceased parent. Then all persons will be in the same MFBU. This is because the mutual child(ren) and step child(ren) are half siblings.

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08.05.02 – Caretaker Relative Examples

A. Introduction

The following examples show the MFBU composition for caretaker relative cases. A caretaker who is a parent or spouse may now be in two cases. ACWDL 91-88

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B. Example 1

Grandmother requests Medi-Cal for herself and her grandchildren (siblings or half siblings). The grandfather and their children also live in the home. The grandfather has no linkage and does not wish Medi-Cal nor do their own children.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children • Caretaker's spouse • Their own children	1	• Caretaker • Related Children Case is in children's mother's name.

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C. Example 2

Grandmother requests Medi-Cal for herself, her grandchildren (siblings or half siblings), her spouse, and her own children. The grandfather and their children live in the home. The grandfather has no linkage. The grandmother has no basis for linkage except as a nonparent caretaker relative to her grandchildren.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children • Caretaker's spouse • Their own children	2	One: • Caretaker • Related children Case is in children's mother's name.
		Two: • Caretaker and caretaker's spouse as ineligible members • Their own children. Case is in caretaker's name.

D. Example 3

Aunt requests Medi-Cal for herself, her sister's children (siblings or half siblings) and her spouse who is aged. They have no children of their own living in the home. The aunt has no basis for linkage except as a nonparent caretaker relative to her nieces and nephews.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children • Caretaker's spouse	2	One: • Caretaker • Related children Case is in children's mother's name.
		Two: • Caretaker as ineligible member • Caretaker's spouse. Case is in caretaker's name.

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E. Example 4

Grandmother requests Medi-Cal for herself, her grandchild, and her sister's children. She has no spouse or children of her own living in the home.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children (some of who are not siblings or half siblings)	2	Option 1 MFBU 1: • Related child (grandchild) MFBU 2 • Related children (niece, nephew) • Caretaker
		Option 2 MFBU 1 • Related child (grandchild) • Caretaker MFBU 2 • Related children (niece, nephew)

F.
Example 5

Uncle, his brother children (siblings or half siblings), his wife and their own children request Medi-Cal. His wife is incapacitated. Nieces are SSI recipients.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children on PA • Caretaker's spouse • Their own children	1	• Caretaker • Spouse • Their own children

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G.
Example 6

Grandmother requests Medi-Cal for herself and her grandchildren (siblings or half siblings). The grandfather receives SSI because he is aged and lives in the home.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children • Caretaker's spouse	1	• Caretaker • Related children

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H.
Example 7

Grandmother requests Medi-Cal for herself, her grandchildren (siblings or half siblings), and her own children. The grandfather receives SSI because he is aged. The grandparents' children are medically indigent; the grandmother's only linkage would be as the nonparent caretaker relative of her grandchildren.

Household	# of MFBUs	MFBU(s) Composition
• Caretaker • Related children • Caretaker's spouse on PA • Their own children	2	One: • Caretaker • Related children
		Two: • Caretaker as ineligible member • Her own children

08.05.03 – Treatment of Income and Property

A. Treatment of Income and Property

In households where there is an MFBU which contains a caretaker relative and related children and the spouse or children of the caretaker either do not wish Medi-Cal or receive PA or other PA and do not appear in any MFBU, no income or property of the caretaker's spouse or own children is counted other than income which is actually contributed to the MFBU. No income or property allocation is made to either the spouse or the caretaker's own children by the caretaker or vice versa.

If ...	Then the worker must ...
The caretaker relative is in two cases,	Consider the caretaker relative's full income in both and allow his/her medical expenses to be used to meet the SOC in both cases.
An MFBU which contains a caretaker relative and related children has excess property or a SOC,	Follow existing Sneede v. Kizer procedures. (See MPG Article 5, Section 14.)

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